

		the filing date of the proof of service of the Court's order. The motion is DENIED without prejudice as to Plaintiff Thomas Nguyen. (Code Civ. Proc. § 284, CRC 3.1362.) Moving attorney failed to submit the mandatory notice form with respect to Thomas Nguyen. A notice was only filed and served with respect to Thomas Solar Energy. (See ROA 107.) Moreover, no proposed order was submitted for Thomas Nguyen. ***OSC Re: Representation of Counsel for corporate entity is set for August 21, 2026 at 9:30 AM. If no counsel appears, the Court will consider striking/dismissing the portions of the Complaint relating to Plaintiff Thomas Solar Energy. Moving attorney is ordered to give notice.
10	The Turnkey Foundation, Inc. vs. Armour Home Mortgage 2023-01323086	Motion to Deem Facts Admitted Defendant Robert A. Gillon's motion to deem matters admitted as to Request for Admissions, set two served on The Turnkey Foundation, Inc. dba Arbor Financial Group is granted in part and denied in part as follows: The court may not deem the matters admitted as Turnkey has provided verified, code compliant responses to the subject discovery. See Code Civ. Proc., § 2033.280. However, the court awards Gillon sanctions in the amount of \$1,960.00 against Turnkey, payable within 30 days. Under Ca. Civ. Pro. section 2033.280, when a party fails to respond timely to Requests for Admissions, "the requesting party may move for an order that the genuineness of any

	documents and the truth of any matters specified in the requests be deemed admitted." However, subdivision (c) of this statute provides a critical limitation: "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." The statute makes monetary sanctions mandatory against the party whose failure to serve timely responses necessitated the motion. The statutory language "shall make this order, unless" creates a mandatory directive that removes judicial discretion once substantially compliant responses are served before the hearing. Ca. Civ. Pro. Section 2033.280. In <i>Wilcox v. Birtwhistle</i>, the California Supreme Court (1999) 21 Cal.4th 973, addressed this provision, noting that the court must grant the motion to deem matters admitted unless the statutory exception applies. The court cannot exercise discretion to grant the motion when the responding party has met the statutory requirement of serving substantially compliant responses before the hearing. <i>Wilcox</i>, id. Here, the verified responses attached to the opposition as exhibit 8 appear to be in substantial compliance with the code. As such, the court may not order the matters deemed admitted. However, the court does have the obligation to impose some sanctions. Plaintiff contends there should be no sanctions awarded as Moving Party acted in bad faith and did not adequately attempt to meet and confer to resolve the issue. The evidence shows otherwise. But the requested sanction of \$4,335.00 is too high. The Court reduces the hours claimed from 9 to 4. At \$475.00 an hour that equates to \$1,900.00 + \$60 for the filing fee or a total sanction award of \$1,960.00.
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		Gillon to give notice.
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